

RISK DETAILS SECTION

REINSURED : **PT Asuransi Tri Pakarta, Jakarta, Indonesia**
(hereinafter referred to as the 'Reinsured')

REINSURER : The subscribing Insurance and/or Reinsurance Companies and/or Underwriting Members of Lloyd's (hereinafter referred to as the Reinsurers), for a participation as stated in the individual signing pages.

PERIOD : Continuous Contract from 1st January 2023 subject to three months written notice of cancellation by either party effective 31st December 2023 of any year local standard time in any time zone.

It is understood and agreed that three months provisional notice of cancellation is automatically tendered on the 31st December each year by both the Reinsured and the Reinsurer, unless otherwise advised by either party by the most efficient means of correspondence.

This Signing Contract is effective in respect of risks attaching hereunder during the period commencing as at 1st January 2023, local standard time in any time zone.

TYPE : **Whole Account Quota Share and Surplus Reinsurance Agreement**

BUSINESS AND SCOPE : **Section 1 :**
Fire and Allied perils including Loss of Profit Business written in the Reinsured's Fire Department.

Section 2 :

Engineering business i.e. :

- Contractors All Risks (incl. TPL & Construction Plant Equipment/ Machineries).
- Erection All Risks (incl. TPL & Erection Plant Equipment / Machineries).
- Machinery Breakdown (incl. Loss of Profit).
- Boiler Explosion Insurance.
- Electronic Equipment Insurance.
- Civil Engineering Completed Risk (CECR).

- Contractor Plant Machinery and Equipment insurance (CPME)
- Comprehensive Machinery Insurance.
- Marine Cum

Written in the Reinsured's Engineering Department.

Section 3 :

All General Accident business i.e.:

- Workmen's Compensation.
- General and Public Liability (including Comprehensive General Liability).
- Employers Liability.
- Golfers Liability.
- Personal Accident.
- Fidelity Guarantee.
- Burglary / Theft.
- Plate Glass / Neon Signs / Billboard
- Travel Insurance including Computerised Travel Insurance.
- Automobile Liability.
- Heavy Equipment / Contractor Plant Machinery / Equipment Non Project.
- Moveable Property All Risk.
- Hole In One.
- Professional Indemnity.
- Product and Contractual Liability.

Written in the Reinsured's General Accident Department

Section 4 :

Marine Cargo business including War, SRCC, and Malicious Damage and Cash in Transit business written in the Reinsured's Marine Cargo Department.

EXCLUSIONS	:	As per Appendix 1 (one) attached.
TERRITORIAL SCOPE	:	Indonesia, Indonesian Interests abroad & ASEAN countries where incidental (10% of sum insured of policy).
TREATY LIMIT	:	<u>Section 1 – Fire :</u> <u>Surplus</u> 15 (fifteen) lines not exceeding IDR 600,000,000,000,- or USD 40,000,000.- or the equivalent thereof in any other currencies any one risk Sum Insured or Limit of Liability basis and graded down as per the attached Table of Limits.

Section 2 - Engineering:

Quota Share

To take 50% Quota Share of the business as defined above, subject to a maximum limit any one risk Sum Insured or Limit of Liability basis for 100% of IDR 50,000,000,000 or USD 3,333,333.33 or equivalent thereof in any other currencies any one risk and graded down as per attached table of limits.

Surplus

5 (five) lines not exceeding IDR 250,000,000,000,- or USD 16,666,666.67 or the equivalent thereof in any other currencies any one risk Sum Insured or Limit of Liability basis and graded down as per the attached Table of Limits.

Section 3 – General Accident :

Surplus

9 (nine) lines not exceeding IDR 45,000,000,000,- or USD 3,000,000.- or the equivalent thereof in any other currencies any one risk Sum Insured or Limit of Liability basis and graded down as per the attached Table of Limits.

Section 4 – Marine Cargo:

Quota Share

To take 15% Quota Share of the business as defined above, subject to a maximum limit any one risk Sum Insured or Limit of Liability basis for 100% of IDR 25,000,000,000 or USD 1,666,666.67 or equivalent thereof in any other currencies any one risk and graded down as per attached table of limits.

Surplus

4 (four) lines not exceeding IDR. 100.000.000.000,- or USD 6,666,666.67 or the equivalent thereof in any other currencies any one risk Sum Insured or Limit of Liability basis and graded down as per the attached Table of Limits.

REINSURER'S
PROPORTION : 100% of 100% Treaty Limit.

REINSURED
RETENTION : **Section 1 – Fire :**
IDR 40,000,000,000,- or USD 2,666,666.67 or the equivalent thereof in any other currencies any one risk Sum Insured or Limit of Liability basis and graded down as per the attached Table of Limits.

50% of 100% Quota Share Limit IDR 25,000,000,000,- or USD 1,666,666.67 or the equivalent thereof in any other currencies any one risk Sum Insured or Limit of Liability basis and graded down as per the attached Table of Limits.

IDR 5,000,000,000,- or USD 333,333.33 or the equivalent thereof in any other currencies any one risk Sum Insured or Limit of Liability basis and graded down as per the attached Table of Limits.

85% of 100% Quota Share Limit IDR 21,250,000,000,- or USD 1,416,666.67 or the equivalent thereof in any other currencies any one risk Sum Insured or Limit of Liability basis and graded down as per the attached Table of Limits..

ACCOUNT : Quarterly in IDR and/or USD currency on a Treaty Year Basis; separately and individually for each Section.

1. Submission of quarterly statements not later than thirty (30) days after the close of each quarter.
2. Confirmation by the REINSURER not later than fifteen (15) days after the receipt of such statements.
3. Settlements of balance due not later than fifteen (15) days after confirmation.

Especially for Section 1: the account shall separately for :

- Fire (Flexas)
- RSMD Code 4.1A/2007 and RSMD/CC Code 4.1B/2007.
- Earthquake, Volcanic Eruption and Tsunami Perils Code 4.2
- Flood , Windstorm, Tempest and Water Damage Code 4.3A

REINSURANCE COMMISSION	:	Section 1 - Surplus	: 31% OGR
		Section 2 - Quota Share	: 30% OGR
		Section 2 – Surplus	: 27.5%OGR
		Section 3 - Surplus	: 32,5% OGR
		Section 4 – Quota Share	: 32.5% OGR
		Section 4 – Surplus	: 30% OGR

PROFIT COMMISSION : All Section :
10% for all sections subject to 10% Management Expenses and 3 (three) year Deficit Clause on Bouquet Basis

Version Date: 20 January 2023

PRELIMINARY LOSS

ADVICE

: Section1 :

Immediately IDR 5,000,000,000,- or USD 344,827.59 for 100% Treaty.

Section2 :

Immediately IDR 5,000,000,000,- or USD 344,827.59 for 100% Treaty.

Section 3 :

Immediately IDR 3,000,000,000,- or USD 206,896.55 for 100% Treaty.

Section 4 :

Immediately IDR 3,000,000,000,- or USD 206,896.55 for 100% Treaty.

CASH LOSS LIMIT

: Section1 :

Whenever loss for 100% of the Treaty attains to exceeds IDR 5,000,000,000,- or USD 333,333.33 (including Interim Payment being part of such losses, as recommended by Loss Adjuster).

Section 2 :

Whenever loss for 100% of the Treaty attains to exceeds IDR 5,000,000,000,- or USD 333,333.33 (including Interim Payment being part of such losses, as recommended by Loss Adjuster).

Section 3 :

Whenever loss for 100% of the Treaty attains to exceeds IDR 3,000,000,000,- or USD 200,000.- (including Interim Payment being part of such losses, as recommended by Loss Adjuster).

Section 4 :

Whenever loss for 100% of the Treaty attains to exceeds IDR 3,000,000,000,- or USD 200,000.- (including Interim Payment being part of such losses, as recommended by Loss Adjuster).

CLAIM

COOPERATION

: Section1 :

IDR 10,000,000,000,- or USD 666,666.67 for 100% Treaty.

Section2 :

IDR 10,000,000,000,- or USD 666,666.67 for 100% Treaty.

Section3 :

IDR 5,000,000,000,- or USD 333,333.33 for 100% Treaty.

Section4 :

IDR 5,000,000,000,- or USD 333,333.33 for 100% Treaty

LEADING
REINSURER : PT Reasuransi Indonesia Utama (PERSERO)

COMMENCEMENT : 1st January 2023 (On Run-off System Basis).

TERMINATION : 3 (three) calendar month's notice of cancellation to expire on 31st December of any year.

"It is understood that Provisional Notice of Cancellation (PNOC) is automatically tendered on 30th September of any year, first cancellation being 31st December 2023 by the Reinsured and Reinsurer hereon. No Formal documentation will be issued by either party."

PORTFOLIO
WITHDRAWAL : Portfolio Premium: On 1/8th System Basis
Portfolio Loss : 90% of Outstanding Losses

PORTFOLIO
ASSUMPTION : Portfolio Premium : -
Portfolio Losses : -

SPECIAL
CONDITIONS : as per Appendix 2 (two) attached

SPECIAL
ACCEPTANCES : All Special Acceptance to be agreed by Leading Reinsurer only and binding on all following Reinsurer hereon.

INFORMATION

Information :

1. Exchange Rate USD 1,00 = IDR 15.000,- subject to Currency Fluctuation Clause.

2. Estimated Premium Income Underwriting Year 2023:

Fire	IDR	110,000,000,000
Engineering QS	IDR	20,000,000,000
Engineering Surplus	IDR	15,000,000,000
General Accident	IDR	10,000,000,000
Marine Cargo QS	IDR	20,000,000,000
Marine Cargo Surplus	IDR	10,000,000,000
	IDR	<u>185,000,000,000</u>

3. Estimated Premium Income Underwriting Year 2022

Fire	IDR	110,000,000,000
Engineering	IDR	17,500,000,000
General Accident	IDR	10,000,000,000
Marine Cargo	IDR	15,000,000,000
Money Insurance	IDR	10,000,000,000
	IDR	<u>162,500,000,000</u>

ATTACHING TO AND FORMING PART OF
WHOLE ACCOUNT QUOTA SHARE AND SURPLUS REINSURANCE TREATY 2023

EXCLUSION LIST
[Appendix Number : 1 (one)]

This Reinsurance does not cover any loss or damage occasioned by or through or in consequence directly or indirectly of any of the following perils or classes of business specified in the following exclusions and exclusion clauses, namely : --

Standard General Exclusions :

1. Reinsurance Treaty (Proportional and Non Proportional) Business.
2. Retrocession Business.
3. Pool Business.
4. Obligatory Reinsurances.
5. Line slips, binding authorities, brokers' covers, captive pools.
6. Excess of Loss / Layered and PML Basis Insurance and Reinsurance Business.
7. Extra Contractual Obligations Exclusion Endorsement.
8. Retroactive Covers in respect of known loss occurrences.
9. Liability arising from loss portfolio transfer of any kind.
10. Nuclear Energy Risks Exclusion Clause 1994 – NMA 1975 (a).
11. War and Civil War Exclusion Clause – NMA 464.
12. Seepage and Pollution Risks – NMA 1685.
13. Electronic Date Recognition Endorsement A ; NMA 2800 11/12/1997.
14. Terrorism and Sabotage as defined by the General Insurance Association of Indonesia (AAUI).
15. IT Hazard Clarification Clause NMA 2912 - 12/11/01.
16. Cyber Exclusion Clause - NMA 2915
17. Offshore Risks (offshore construction/erection works), except Palapa Ring Account max 20% of Treaty Limit
18. Asbestos Exclusion.
19. Sanction Limitation & Exclusion Clause LMA 3100.
20. Communicable Disease Exclusion Clause (Casualty Treaty) LMA 5399.
21. All Type of business not expressly mentioned under the Business & Scope

Section 1 : Exclusions

1. Transmission & Distribution Lines Exclusion (above 1,000 meters)
Excluding losses in respect of overhead transmission and distribution lines and their supporting structures other than those on or within 1,000 meters of the insured premises.
2. Traditional Pasar Risk (risk code 2935) as defined by the Pasar Konsorsium.
3. Growing Trees and any other Plantation Insurance.
4. Offshore Risks , except Palapa Ring Account maximum 20% of Treaty Limit.
5. Livestock.
6. Difference In Conditions (DIC) policies.
7. Business Interruption due to infectious or contagious disease.
8. Communicable Disease Exclusion Clause - Property LMA 5394

Section 2 : Exclusions

1. All Classes of business not explicitly mentioned as being covered under this Agreement. e.g :
 - Advance Loss of Profit (ALOP).
 - Industrial All Risks (IAR).
 - Offshore Risks (offshore construction/erection works).
 - Space Risks and Space-Related Risks such as satellites, spacecraft, launch vehicles and major components thereof from the beginning of transit to launch site; launch Sites.
2. All defective design cover, plan, specification and workmanship unless MR 115 (or DE3) and MR 200 (or LEG2).
3. Penalty Clauses (i.e. faulty or belated delivery of the insured objects).
4. Computer Fraud.
5. Any kind of data, software or e-commerce cover.
6. Financial and/or Performance/Production Guarantees.
7. Decennial Liability.
8. Employers' Liability/Workmen's' Compensation.
9. Cost over run.
10. Pollution / contamination, except liability arising from a sudden accidental, identifiable, unintended and unexpected event.
11. Tunnelling projects, except tunnelling as a part of a project.
12. Transmission and Distribution lines in the operational phase.
13. Prototype Risks or Non Proven Technology risks.
14. Cessation of Works.
15. The Construction Period longer than 72 months (incl. Maintenance, Testing and Commissioning) subject to leaders approval.
16. CAR/EAR policies having maintenance or defect liability period more than 36 months.
17. Electronic and computer crime.
18. Difference InConditions (DIC) policies.
19. Communicable Disease Exclusion Clause - Power Gen & Engineering LMA 5397

Section 3 : Exclusions

General Accident Exclusions

1. Rowing, standing and drying crops (including timber).
2. Aquaculture.
3. Greenhouses.
4. Any kind of All Risks business other than All Risks business for personal effects.
5. Contingency Risks of any kind (incl. extended warranties, kidnap and ransom, residual value, asset value or similar covers, recapture of Investment Tax Credits, Accelerated Depreciation).
6. Electronic & computer crime.
7. Satellites, launch vehicles and major components thereof from the beginning of transit to launch site. Launch sites.
8. Larceny (i.e. theft without violence), mysterious disappearance.
9. Aviation and Marine Risks of any kind.
10. Natural hazards of any kind.
11. Subsidence.
12. Communicable Disease Exclusion Clause - Liability LMA 5396

Personal Accident Exclusions

1. Workmen's Compensation Insurances and/or Employer's Liability Insurances.
2. Big game hunting.
3. Personal accident in respect of pilot and aircrew.
4. Naval, military or airforce personnel.
5. Workers engaged as miners.
6. Participation in any kind of race with motorised vehicles.
7. Slot machine and newspaper coupon business.
8. Airport machine business and tour operators group schemes.
9. Coupon, Discount/Charge/Credit Cards or any other similar schemes except for Personal Accident coverage on Diners' Travel Account.
10. Professional sports teams.
11. Ship crews and divers.
12. Medical expenses (including hospitalisation) which are not due to an accident.
13. This insurance does not cover any losses, cost or expenses arising directly or indirectly out of nuclear fission, nuclear radiation or radioactive contamination (resulting therefrom), irrespective of whether other causes have contributed to the claim.

Third Party Liability Exclusions

Excluding claims arising out of the following:

1. The ownership or use of aircraft and air cushioned vehicles, motor vehicles, cable cars and vessels.
2. Railways, tramways, aerodromes and airports.
3. Dry docks, docks, quays shipbuilding, ship-repairing and ship-breaking yards.
4. Manufacture, storage, filling, breaking down, transport :
 - a. Fireworks, ammunition, fuses, cartridges, powder, nitro glycerine or any explosives.
 - b. Gases and/or air under pressure in containers.
 - c. Butane, methane, propane and other liquid gases.
 - d. Petrochemicals.(It is understood and agreed, however, that the storage and transport of any of the substances abovementioned which is merely incidental to the operation and/or trade of the Insured is not excluded from this reinsurance).
5. Gas or electricity undertakings.
6. Underground and underwater mine and all underground services in connection therewith.
7. Quarries if explosives are used.
8. Tunnelling and all excavation work in connection therewith.
9. Contractors carrying out construction, repair or installation work on vessels or aircraft or within the perimeters of airport.
10. Construction and maintenance of dams (coffer dams) or underwater construction and/or other work.
11. Drilling, producing, refining and/or distributing of liquid or gaseous fuels.
12. Director's Liability.
13. Product Recall and/or Defective Design.
14. Pollution.
15. All claims and losses based upon, arising out of, directly or indirectly resulting from or in consequence of, or any way involving :
 - a) asbestos or

- b) any actual or alleged asbestos related injury or damage involving the use, presence, existence, detection, removal, elimination or avoidance of asbestos or exposure or potential exposure to asbestos.
- 16. Medical Malpractice.
- 17. Ocean Marine Liability including Warehousemen's Legal Liability.
- 18. The ownership, operation or use of amusement parks and devices, stadiums and stands.
- 19. Onshore and offshore oil and gas operations.

Fidelity Guarantee Exclusions

- 1. Losses caused by a person who is known to have committed dishonest and fraudulent acts.
- 2. Losses resulting from bodily injury.
- 3. Indirect losses e.g. loss of interest, losses due to business interruption.
- 4. Errors in book keeping and/or losses discovered during stocktaking.
- 5. Bankers' bonds.
- 6. Unauthorized trading risks and/or losses by dealers, traders, brokers, etc. in the financial and/or commodity markets.
- 7. Espionage, blackmailing, extortion, libel and similar risks.
- 8. Other bonds and guarantees of any kind.

Workmen's Compensation/Employers' Liability Exclusions

- 1. Aircraft crews.
- 2. Underground and underwater mines and all underground services in connection therewith
- 3. Manufacture and/or production, storage, filling, breaking down, transport of:
 - a) Fireworks, fuse(s), cartridges, ammunition, powder, nitroglycerine or any explosives
 - b) Gases and/or air under pressure in containers
 - c) Butane, Methane, Propane, and other liquefied gases (This Exclusion does not apply to general retailers and consumers)
 - d) Toxic substances and toxic waste

(It is understood and agreed, however, that the storage and transport of any of the substances above mentioned which is merely incidental to the operations and/or trade of the company's insured not otherwise excluded, is hereby covered).
- 4. All claims and losses based upon, arising out of, directly or indirectly resulting from or in consequence of, or any way involving:
 - a) asbestos or
 - b) any actual or alleged asbestos related injury or damage involving the use, presence, existence, detection, removal, elimination or avoidance of asbestos or exposure or potential exposure to asbestos.
- 5. Ships crews.
- 6. Tunnelling exceeding 100 metres in length.
- 7. Offshore rigs.
- 8. Quarries, if explosives are used, unless merely incidental to the operations and/or trade of the company's insured not otherwise excluded.
- 9. The construction, maintenance and demolition of towers, steeples, bridges and chimney shaft unless merely incidental to the operations and/or trade of the company's insured not otherwise excluded.

10. Contractors engaged exclusively in wrecking and demolition.
11. Construction and maintenance of dams.
12. Shipbuilding, ship repairing and shipbreaking. This exclusion does not include general maintenance/repairs carried out by general contractors, and incidental contracts including work on board vessels
13. Oil companies - drilling, producing, refining and distributing (other than general distributors and petrol stations).
14. Fire brigades.
15. This insurance does not cover any losses. Costs or expenses arising directly or indirectly out of nuclear fission, nuclear radiation or radioactive contamination (resulting therefrom), irrespective of whether other causes have contributed to the claim.

Section 4 : Exclusions

1. Paramount War Clause 5/10/77.
2. Institute Radioactive Contamination Exclusion Clause 1/10/90.
3. Electronic Date Recognition Endorsement Clause – C.
4. Seepage and Pollution Exclusion Clause 1/1/89.
5. Nuclear Energy Risks Exclusion Clause 1/1/89.
6. Institute Extended Radioactive Contamination Exclusion Clause 1/11/02.
7. Institute Chemical, Biological, Bio-Chemical, Electromagnetic Weapons and Cyber Attack Exclusion Clause. 1/11/02.
8. Political Risk, Financial Guarantee and Credit Exclusion Clause 1995.
9. Information Technology Hazards Exclusion Clause – JEL 16/11/01.
10. Termination of Transit Clause (Terrorism) JC2001/056.
11. Marine or Aviation Hulls, unless carried as Cargo.
12. Cargo's carried by :
 - Wooden Vessels older than 15 years and below 100 GRT
 - Motorized Wooden Sailing Boats/Vessels (PLM/KLM)
 - Iron and Steel Vessels older than 35 years, unless otherwise Classed Iron/Steel Vessel of 2000 GRT and over with maximum of 40 years of age.
13. Livestock and Bloodstock.
14. Rejection, Prohibition and Embargo Risks.
15. Confiscation Risks.
16. Stock Throughput Risk.
17. Sanctions Limitation and Exclusion Clause.
18. Communicable Disease Exclusion Clause - Marine Liability LMA 5395

**ATTACHING TO AND FORMING PART OF
WHOLE ACCOUNT QUOTA SHARE AND SURPLUS REINSURANCE TREATY 2023**

**SPECIAL CONDITIONS
[Appendix Number : 2 (two)]**

All Sections :

1. Cession in respect of Co-Insurance Business shall be limited based on the Reinsured's Co-Insurance share as follows :

Co-Insurance Share	Limit Treaty
$\geq 20.00 \%$	100.00 %
$\geq 10.00 \%$ - 20.00 %	75.00 %
$\geq 5.00 \%$ - 10.00 %	50.00 %
$< 5.00 \%$	25.00 %

Except Co-Insurance Business for Bank Negara Indonesia (BNI) and Bank Rakyat Indonesia (BRI) Business can be ceded into treaty with 100% Limit Treaty.

For Bank BCA, Bank CIMB Niaga dan Exim Bank can be ceded into treaty with 100% Limit Treaty as leader approval.

The above Co-Insurance share shall not applicable to risk equal to or higher than IDR. 1.000.000.000.000,00 and can be ceded into treaty with 100% Limit Treaty.

Each of the above limits is applicable is to be on signed lines for the risks concerned as stated in the attached Table of Limits.

2. Inward Facultative Business can be ceded to the Treaty subject to maximum 10% of treaty limit according to Table of Limits, except Inward Facultative Business with following account:
1. PT. Asuransi Wahana Tata which can be ceded subject to maximum 25% of Treaty Limit;
 2. Renewal account which can be ceded in to Treaty with existing limit, subject to reporting by quarterly bordereaux with list as follow:

• PT. Bio Farma	• Nikomas Group
• Perusahaan Umum Percetakan Uang Negara Republik Indonesia (PERURI)	• PT. Nippon Shokubai
• PLN Group	• PT. Gajah Tunggal
• Pupuk Indonesia Group	• PT. Djarum
• Mining Industry Indonesia Group	• PT. Bank Tabungan Negara
• PT. Krakatau Steel	• KPN Group
• PT. Hyundai Motor Manufacturing Indonesia	• PT. Indosat
• PT. Indonesia Energi Dinamika	• PT. PAL Indonesia
• PT. Pegadaian	• PT. Semen Indonesia Group
• PT. Kelola Jasa Artha	• PT. Semen Baturaja
• PT. Bank Central Asia	• PT. Telkomsel
• PT. Angkasa Pura I	• Maspion Group

• PT. Semen Grobogan	• PT. XL Axiata
• PT. KMI Wire & Cable	• PT. Solo Murni Boyolali
• PT. Trans Marga Jateng	• PT. Marga Harjaya Infrastruktur
• PT. Ecogreen Oleochemicals	• PT. Sat Nusa Persada
• PT. Yanmar Indonesia	• PT. Sumi Rubber Indonesia
• PT. Daihatsu Drivetrain Manufacturing Indonesia	• PT. Akashiwa Wahana Indonesia

3. Renewal of the approved special acceptance are automatically agreed by leading reinsurer subject to loss ratio of the risk is less than 50% in the preceding year.
4. Long term business (policies exceeding 12 months) can be ceded into the treaty with subjectivity annually ceded.

Section 1 :

1. Cession in respect of Riots, Strikes, Malicious Damage risk is subject to the following conditions :
 - a. As defined by The General Insurance Association of Indonesia (AAUI).
 - b. Limit of liability any one event (event limit) figures for "Riots, Strikes, Malicious Damage Endorsement Code 4.1 A/2007 and/or 4.1 B/2007" shall not exceed IDR 1,500,000,000,000,-
2. Cession in respect of Earthquake, Volcanic Eruption and Tsunami risk is subject to the following conditions :
 - a. As per AAUI Earthquake Policy SK No. 005/AAUI/2003 dated 13 January 2003 and its related endorsement.
 - b. Priority Cession to PT. MAIPARK.
 - c. Premium rate subject to PT. MAIPARK.
 - d. Limit of liability anyone event (event limit) figures shall not exceed IDR 1,500,000,000,000,-.
3. Cession in respect of Flood, Windstorm, Tempest and Water Damage risk is subject to the following conditions :
 - a. As per Flood, Windstorm, Tempest and Water Damage Code 4.3A.
 - b. Deductible as per SEOJK No. 6/SEOJK.05/2017
 - c. Limit of liability anyone event (event limit) figures shall not exceed IDR 1,500,000,000,000,-.

For the purposes of this Agreement, Jabodetabek (which include Jakarta, Depok, Bogor, Tangerang and Bekasi) shall be regarded as one city.

An event shall include all insured losses which arise directly from the same cause and which occur during the same period of time and in the same area. Such cause is understood to be the peril which directly occasions the losses or where there are several perils which, in an unbroken chain of causation, have occasioned the losses, the peril which triggered the chain of causation. The duration and extent of an event so defined shall be limited to 168 consecutive hours for Flood, Windstorm, Tempest and Water Damage.

4. Accumulation Control of :
 - a. Riots, Strikes, Malicious Damage Endorsement code 4.1A/2007 and RSMD 4.1B/2007.
 - b. Earthquake, Volcanic Eruption and Tsunami Endorsement code 4.2.
 - c. Flood, Windstorm, Tempest and Water Damage code 4.3A

As at March 31st, June 30th, September 30th and December 31st shall be reported by the Reinsured to the Reinsurer within 30 (thirty) days thereafter.

Should the Reinsured fail to report the accumulation figures within the period, the Reinsured shall be deemed to have reported the accumulation figure being the same with the latest reported accumulation figure made by the Reinsured to the Reinsurer.

5. Transmission & Distribution Lines (above 1,000 meters)
Excluding losses in respect of overhead transmission and distribution lines and their supporting structures other than those on or within 1,000 meters of the insured premises.
6. Livestock for business emanate from bank can be ceded to the treaty subject to maximum 40% of treaty limit and limited to Flexas + RSMDCC 4.1B AAUI, except for Bank BNI business limited to Flexas + Allied Perils..
7. Industrial/Commercial/Property All Risks including Business Interruption / Loss of Profit / Consequential Loss following Fire; RSMD 4.1A/2007; RSMD/CC 4.1B/2007; code 4.2 Earthquake, Volcanic Eruption and Tsunami perils and code 4.3 Windstorm, Tempest, Flood and Water Damage can be ceded to the treaty subject to :
 - a. Combined Limit Material Damage and LOP.
 - b. Sum Insured of Business Interruption/Loss of Profit/Consequential Loss for Bank Business (Manufacturing Risk), Non Bank Business and Non Commercial Risk maximum 50% of Material Damage. However for sum insured more than 50% of Material Damage can be ceded in to treaty subject to prior approval by treaty leader.
 - c. Sum Insured of Business Interruption/Loss of Profit/Consequential Loss for Bank Business (Non Manufacturing Risk) maximum 100% of Material Damage.
 - d. Indemnity Period Maximum 24 months
8. Catastrophic Losses subject to submission of a Special Report on Total Potential Loss immediately not later than 60 (sixty) days after the event and monthly updated.
9. Suppliers and Customers extension to be on "First Tier" only, to have a time excess three (3) to seven (7) days, and sub-limited to 10% of Business Interruption sum insured or USD 10,000,000 whichever is lower.
10. Public Utilities and Prevention of Access Extensions sub-limited to 10% of Business Interruption Sum Insured or USD 10,000,000 whichever is lower.
11. Special for Plantation Insurance can be ceded to the treaty with maximum limit 50% of treaty limit, limited to:
 - a. PSAKI wording policy amended with deleted exclusion clause 1.1.5 (by clause No. 1) plus RSMD 4.1A and Civil Commotion, except for Bank BNI business limited to Flexas + Allied Perils; and/or
 - b. Growing Trees and any other Plantation Insurance Policy plus RSMD 4.1 A and Civil Commotion.
12. Oil and Gas risk for onshore only can be ceded into treaty subject to :
 - c. 10% of Treaty Limit.
 - d. Wording policy as per Oil and Gas Well Drilling Tool Floater Form (Land).

- e. Territorial Scope : Indonesian Onshore Territories and Indonesian interest world wide but to exclude North Sea and Gulf of Mexico off shore property and associated interests absolutely.
- f. Political Risk, Financial Guarantee and Credit Exclusion Clause 1995.
- g. See page and Pollution Risk Exclusion Clause 1/1/89.

Section 2 :

1. Cession in respect of Riots, Strikes, Malicious Damage plus Civil Commotion not wider than Riots, Strikes, Malicious Damage Endorsement Code 4.1B/2007 as defined by The General Insurance Association of Indonesia (AAUI).
2. Catastrophic Losses subject to submission of a Special Report on Total Potential Loss immediately not later than 60 (sixty) days after the event and monthly updated.
3. The Construction Period longer than 72 months (including Maintenance, Testing and Commissioning) can be ceded in to the treaty subject to leaders approval.
4. Cessation of Works can be ceded in to Treaty subject to Leader Approval for Bank Business only.
5. Advance Loss of Profit (CAR/EAR) and Business Interruption (MB/CECR) can be ceded into Treaty subject to maximum 50% of material damage for Bank Business and 25% of material damage for Non Bank Business.

Especially :

- a. For Business Interruption (MB), if limit exceeding 50% of Material Damage, can be ceded subject to prior approval by treaty leader.
- b. For Business Interruption (CECR) can be ceded into Treaty subject to:
 - 50% of material damage for Bank Business max. IDR. 30,000,000,000,-
 - 25% of material damage for Non Bank Business max. IDR. 30,000,000,000-
6. The Construction Period of CAR/EAR can be ceded into treaty even though the construction period is not following the period of contract subject to prior approval by treaty leader.
7. Offshore Construction/Erection Work can be ceded into treaty for seashore project work subject to scope of work in onshore more than 50% of contract value.

Section 3 :

1. Cession in respect of Riots, Strikes, Malicious Damage plus Civil Commotion not wider than Riots, Strikes, Malicious Damage Endorsement Code 4.1B/2007 as defined by The General Insurance Association of Indonesia (AAUI).
2. General and Public Liability risk is subject to :
 - Maximum Annual Aggregate Limit (AAL) is 3 (three) times of Limit of Liability in the policy.
 - Claim Made basis.
3. Catastrophic Losses subject to submission of a Special Report on Total Potential Loss immediately not later than 60 (sixty) days after the event and monthly updated.

4. Contingency Risks of any kind (incl. extended warranties, kidnap and ransom, residual value, asset value or similar covers, recapture of Investment Tax Credits, Accelerated Depreciation) can be ceded into Treaty subject to leader approvals.
5. Electronic & computer crime can be ceded into Treaty subject to maximum 20% of Treaty Limit.

Section 4 :

1. Marine Cargo Policy as per International Underwriting Association of London (IUA) or "Polis Standar Asuransi Pengangkutan Barang Indonesia (PSAPBI)" issued by AAUI.
2. Land Transit policy as per Polis Standar Asuransi Pengangkutan Barang Indonesia (PSAPBI).
3. Cession in respect of War & Strikes Risk subject to Trading Warranty and Rating mentioned on the latest circular letter of Joint Cargo Committee.
4. Classed Iron/Steel Vessel of 100 GRT and over including connecting Transshipment and in case Towage is involved in such Transshipment shall apply the following conditions :
 - Maximum Double Tow.
 - By Classed Steel/Iron of Barge/Pontoon (minimum 100 GRT).
 - Age of Barge/Pontoon/Tug Boat not more than 25 years old.
5. Coverage for the Unclassed Vessels can be ceded to the treaty subject to table of limits.
6. Towing Risks Insured Individually (Indonesian, Singapore, Malaysian, Timor Leste Waters Only), subject to following conditions :
 - Maximum Double Tow.
 - By Classed Steel/Iron of Barge/Pontoon (minimum 100 GRT).
 - Age of Barge/Pontoon/Tug Boat not more than 25 years old.
 - Conditions including Institute Bulk Oil Clause and Institute Coal Clause.
7. Motorized Wooden Vessel/K.K.M. of minimum 100 GRT and not older than 15 years, subject to the following conditions :
 - Total loss of the goods concurring the total loss of vessel.
 - Total Loss of the goods
 - ICC "C" (or any other coverage of narrower scope of cover).
8. PT. Gudang Garam and Group can be ceded 100% of treaty limit regardless of conveyances, GRT, construction, age, and classification.

DEFINITION
[Appendix Number : 3 (three)]

All Sections

1. Wet risk

Means any works, where more than say 15% of its value is in, under or over water or is below the high water mark of any tidal body of water. The term shall include contracts of the construction of wharfs, piers, marinas, causeways, breakwaters, jetties, dry docks and offshore pipelines when connected directly to on-shore facilities and canal developments.

2. Off shore risk

Offshore risk basically are those located in the sea away from the coast.

3. Difference in Conditions (DIC)

DIC insurance is a type of policy that provides an expanded coverage for some perils not covered by standard insurance policies. DIC is designed to fill in gaps in insurance coverage and is most frequently used by larger organisations. looking for protection from catastrophic perils.

4. Cession of Works

Construction risks can become dormant for a number of reasons, including cash flow or payment disputes and etc. Dormant sites is unattractive to insurers who provide cover for plant, machinery and works and public liability. From an insurance perspective, when a site becomes dormant the risk exposure increases significantly as plant and equipment become more vulnerable to damage and liability claims. Criminals will often target dormant sites to steal valuable metals, machinery and building materials.

This clause places an obligation on the policyholder to notify their insurer if work ceases for a set period of time, usually say 30 to 60 days. Insurers have the right to modify their policy terms. For example they may want to impose greater security measures, increase their premium or policy excesses or in some cases even withdraw cover completely.

FIRE TABLE OF LIMITS 2023 SCHEDULE OF PERCENTAGE OF LIMIT

Maximum One Line Retention Any One Risk = IDR 40,000,000,000,- any one risk Sum Insured or Limit of Liability basis (Combined material Damage and Business Interruption / Loss Of Profit).

CATEGORY	RISK EXPOSURE	CONSTRUCTION CLASS		
		I	II	III
I	LOW	100%	90%	70%
II	MEDIUM	100%	70%	50%
III	HIGH	70%	50%	30%

Category I (Low Exposure Risks)

20	Mining, etc.
21	Stone, Earth
22	Metals
290	Transport and Traffic
29313	Shopping Mall
294	Sports, Hotel and Entertainment Services
295	The Caring Services
297	Private Buildings
298	Property of Public Bodies
23002	Pharmaceutical Product Factories and Medicated Plaster Factory
27	Nutritional Drinks and Tobacco

Category II (Medium Exposure Risks)

226	Electronic Manufacturing, etc.
23001	General Chemical Products
23003	Natural/Traditional Drug
23004	Insecticides and Herbicides Factories
235	Manufacturer of Artificial Fiber
236	Manufacture of Film, Photographic Paper and Magnetic Tape
237	Manufacture of Soaps, Perfume, Cosmetic Products, etc
25	Leather Rubber, except 256/257/258/2511
	Leather/Shoe/Leather Goods (IV).
28	Power and Heating
291	Construction Firm
292	Mass Communication
293	Trading and Storage
2942	Night Clubs, Discotheque, etc.
299	Special Cover for Building
30	Estate
31	Factory at the plantation site
40	Plantation

FIRE TABLE OF LIMITS 2023
SCHEDULE OF PERCENTAGE OF LIMIT
(Continued)

Category III (High Exposure Risks)

23	Chemicals/Oil/Gas, except 23001
24	Textile
2511	Paper Manufacturer
256	Leather Production and Tanneries
257	Shoe Factory
258	Leather Goods Factory
26	Wood, Bamboo and Rattan
296	Motor Vehicle Repair Shops and Service Station

ENGINEERING TABLE OF LIMIT 2023

NO.	DESCRIPTION	% OF LIMIT
I. CONTRACTOR'S ALL RISKS (Including TPL and Construction Plant and Equipment/Machinery Breakdown, if insured).		
1.	Work and Construction Equipment Project Insured.	
a.	Civil Engineering Work within the area of watercourses or bodies water such as : 1) Earthwork, Roads, Railways, Bridges. 2) Culverts, Sewage's, and Irrigation Project. 3) Canals and Deep Foundations. 4) Siphons, Retaining Walls, Breakwaters. 5) Harbor Facilities, Docks, Jetties, and Dams. 6) Hydroelectric Project etc.	80%
b.	Galleries, shafts and tunnels where mining methods are used.	60%
c.	Waterproofing work.	60%
2.	Work affecting existing structures, including such work carried out part of works listed in (3) and (4) below.	80%
3.	Fairly large construction project, predominantly involving reinforced concrete works or underground foundations, reinforced concrete's skeleton structure of any kind, industrial building such as sheds, silos, surface tank etc. Civil Engineering works outside the area of watercourses or bodies of water, except those mentioned under point 1b and 1c with limit.	100%
4.	Residential and others building involving little reinforced concrete work and shallow foundation, repair of damaged building of any type.	100%
5.	Underground Cables	100%
6.	Pipelines	
a.	Pipelines in town and villages	80%
b.	Cross-country pipelines	60%
c.	Sub-marine pipelines	40%
II. ERECTION ALL RISKS (Including TPL and Erection Plant and Equipment/Machinery Breakdown, if insured).		
1.	Single Machine	100%
2.	Structure (Bridges, Factory sheds).	100%

ENGINEERING TABLE OF LIMIT 2023 (Continued)

NO.	DESCRIPTION	% OF LIMIT
3.	Complete Power Station or Manufacturing Plants, except those mentioned under 4 below as Per Fire blocks (in case of pronounced exposure to earthquake, flood, windstorm, and retention to be fixed per project).	100%
4.	Petrochemical Plants (including Fertilizer Plants Refineries) Per completes Plant or Refinery.	80%
III.	MACHINERY BREAKDOWN (Including LOP following Machinery Breakdown, if in conjunction therein).	80%
IV.	ELECTRONICS EQUIPMENT INSURANCE	100%
V.	CIVIL ENGINEERING COMPLETED RISK	100%
VI.	BOILER INSURANCE	70%
VII.	CONTRACTORS PLANT & MACHINERY/EQUIPMENT (PROJECT)	50%
VIII.	COMPREHENSIVE MACHINERY INSURANCE	100%
IX.	MARINE CUM	50%

GENERAL ACCIDENT TABLE OF LIMIT 2023

NO.	DESCRIPTION	% of LIMIT
1. WORKMEN'S COMPENSATION		
a.	Any One Person.	25 %
b.	Any One Group.	100 %
2. PUBLIC LIABILITY.		
a.	General & Public Liability (Incl. Comprehensive General Liability).	100 %
b.	Employers Liability.	100 %
c.	Golfer's Liability.	20 %
3. PERSONAL ACCIDENT		
a.	Any One Person.	25 %
b.	Any One Group.	100 %
4. FIDELITY GUARANTEE		
a.	Individually.	15 %
b.	Collective.	75 %
5. BURGLARY / THEFT		
a.	Residential	25 %
b.	Commercial	50 %
6. PLATE GLASS / NEON SIGNS / BILLBOARD		10 %
7. TRAVEL INSURANCE		10 %
8. HEAVY EQUIPMENT / CONTRACTOR PLANT MACHINERY / EQUIPMENT NON PROJECT		75 %
9. MOVEABLE ALL RISK		30 %
10. AUTOMOBILE LIABILITY		20 %
11. HOLE IN ONE		10 %
12. PRODUCT AND CONTRACTUAL LIABILITY		20 %
13. PROFESSIONAL INDEMNITY :		
a.	Individual	25 %
b.	Collective	75 %

MARINE CARGO TABLE OF LIMIT 2023

NO.	DESCRIPTION	PERCENTAGE OF LIMIT
1.	CLASSED IRON/STEEL VESSEL OF 2,000 GRT AND OVER	
1.1.	Not older than 15 years.	100 %
1.2.	Older than 15 years but not older than 25 years.	90 %
1.3.	Older than 25 years but not older than 35 years.	75 %
1.4.	Older than 35 years but not older than 40 years.	50 %
	In respect of Unclassed Vessels, limit 75% from the above limits	
2.	CLASSED IRON/STEEL VESSEL OF 1,000 GRT AND BUT UNDER 2000 GRT OVER	
2.1.	Not older than 15 years.	90 %
2.2.	Older than 15 years but not older than 25 years.	75 %
2.3.	Older than 25 years but not older than 35years.	55 %
	In respect of Unclassed Vessels, limit 75% from the above limits	
3.	CLASSED IRON/STEEL VESSEL OF 500 GRT AND OVER BUT UNDER 1000 GRT	
3.1.	Not older than 15 years.	75 %
3.2.	Older than 15 years but not older than 25 years.	55 %
3.3.	Older than 25 years but not older than 35 years.	45 %
	In respect of Unclassed Vessels, limit 75% from the above limits	
4.	CLASSED IRON/STEEL VESSEL OF 100 GRT AND OVER BUT UNDER 500 GRT	
4.1.	Not older than 15 years.	65 %
4.2.	Older than 15 years but not older than 25 years.	55 %
4.3.	Older than 25 years but not older than 30 years.	40%
	In respect of Unclassed Vessels, limit 75% from the above limits	
5.	CLASSED IRON/STEEL OF L.C.T./L.S.T./L.C.M/ WITH MINIMUM 100 GRT AND NOT OLDER THAN 25 YEARS	50 %
	In respect of unclassified Vessels, limit 75% from the above limits	
6.	UNDERTERMINED VESSEL RISK	50 %
7.	TOWING RISKS INSURED INDIVIDUALLY	75 %
	In respect of Unclassed Vessels, limit 75% from the above limits	
8.	MOTORIZED WOODEN VESSEL/K.K.M. OF MINIMUM 100 GRT AND NOT OLDER THAN 15 YEARS OLD	50 %
9.	AIR TRANSIT (Any one Conveyance)	100 %

10. LAND TRANSIT	
10.1. By Train	100 %
10.2. By Truck or Trailer	50 %
11. CASH IN TRANSIT (per any one sending) including cash money, gold, stamp duty, voucher in respect of The Insured's interest.	100 %
Including Sub Limit Fidelity Guarantee with maximum limit 50% of Sum Insured Cash In Transit.	

**WHOLE ACCOUNT QUOTA SHARE AND SURPLUS
REINSURANCE AGREEMENT 2023**

between

PT. ASURANSI TRI PAKARTA
(hereinafter called the "REINSURED")
of the one part

and

PT. REASURANSI INDONESIA UTAMA (PERSERO)
(hereinafter called the "REINSURER")
of the other part,

Whereby it is agreed as follows :

ARTICLE 1
(Business And Scope)

This Agreement shall apply to all insurances and/or reinsurances accepted or renewed by the Reinsured as defined in the Schedule attaching to and forming an integral part of this Agreement, subject, however, to the exclusion stated in the said Schedule.

ARTICLE 2
(Share And Retention)

The REINSURED shall cede and the REINSURER shall accept by way of reinsurance the proportion stated in the Schedule (hereinafter called the REINSURER's proportion) of those insurances and/or reinsurances stated in the Schedule.

The REINSURED shall, however, be entitled in cases where it deems it advisable and before interesting the REINSURER under this agreement, to reinsure facultatively either a part or whole of any risk; provided, however, that said rights shall be used only when it appears to be beneficial to the REINSURER.

The REINSURED shall decide what constitutes one risk hereunder and unless otherwise hereinafter provided shall fix its retention in accordance with the Table of Limits attached hereto.

The Table of Limits shall not be altered without the prior consent of the REINSURER.

The REINSURED shall be entitled to protect its retention by means of Excess of Loss Reinsurance.

ARTICLE 3
(Original Conditions)

All cessions under this Agreement shall be subject to the same premiums, values, periods, terms, clauses, conditions, warranties, additional premium and return premiums as the original policies.

Furthermore unless otherwise specifically provided hereunder, no cession made under this agreement shall be for a duration of more than twelve months plus odd time but not exceeding eighteen months in all. Especially for Long Term business (policies exceeding 12 months) can be ceded into the treaty with subjectivity annually ceded.

ARTICLE 4
(Maintenance Of Record)

The REINSURED shall maintain a record of all cessions hereunder and of all renewals as well as alterations thereto.

ARTICLE 5
(Bordereaux)

All cessions and claims hereunder shall be advised periodically to the REINSURER on premium and claims bordereaux forms as stated in the Schedule.

ARTICLE 6
(Accounts)

Accounts in a currency or currencies stated in the Schedule shall be submitted quarterly by the REINSURED to the REINSURER after the close of each quarter which shall be deemed to close on the 31st March, 30th June, 30th September, and 31st December respectively of each year.

Submission of quarterly statements shall be made as soon as possible but not later than thirty days after the close of each quarter. Confirmation by the REINSURER shall be made as soon as possible but not later than fifteen days after the receipt of such statements, and settlements of balance due shall be made as soon as possible but not later than fifteen days after confirmation.

Inadvertent errors and/or omissions in the quarterly accounts shall not delay the payment of any balance due hereunder unless such errors and/or omissions have a major effect on the remittable balance. Any necessary correction shall be made in a supplementary account to the related quarter which shall be submitted at the same time as the next quarterly accounts rendered hereunder (except in those cases where the error and/or omission has a major effect on the remittable balance necessitating an immediate adjustment).

ARTICLE 7**(Premium, Commission And Profit Commission)**

- 7.1. The REINSURED shall pay to the REINSURER the REINSURER's proportion of the original premium as defined in the Schedule due to the REINSURER in respect of all risks ceded hereto. The REINSURER shall allow commission as stated in the Schedule, but unless otherwise provided no other deduction will be made.
- 7.2. The REINSURER shall further allow the REINSURED a sum equal to the percentage as stated in the Schedule of the profits derived by the REINSURER from the business ceded under this Agreement.

The annual net profit shall be shown in a yearly profit commission statement drawn up by the REINSURED at the end of each treaty year in respect of each individual treaty year. Such statement shall be drawn up as follows :

Income

- (a) Original premiums, including additional premium less returns of premiums.
- (b) Premium Portfolio or Technical Reserve, brought forward from the preceding year, if any
- (c) Loss Portfolio or Reserve for Outstanding Losses, brought forward from the preceding year, if any

Outgo

- (a) Commission as defined in the Schedule.
- (b) Claims and expenses paid less salvage and refunds recovered.
- (c) Premium Portfolio or Technical Reserve for the unearned premium of the current year as defined in the Schedule.
- (d) Loss Portfolio or Estimated Liability in respect of losses attaching to the treaty year and outstanding at the time of the rendering of the Profit Commission Statement.
- (e) The percentage of Original Premium as stated in the Schedule in respect of Management Expenses of the REINSURER.
- (f) Debit Balance, if any, from the previous year.

The excess, if any, of INCOME over OUTGO shall represent REINSURER's net profit on

which the aforesaid commission shall be calculated.

- 7.2.1. Profit Commission Statements shall be rendered separately for each treaty year. The first Profit Commission Statement shall be prepared reflecting the position twenty-four months after the commencing of the treaty year in question. The Profit Commission shall be adjusted annually thereafter as may be necessary by supplementary items of INCOME and/or OUTGO and until all liability on policies having inception dates within the treaty year in question shall be finally concluded.
- 7.2.2. In case the related accounts are in more than one currency for the purpose of the Profit Commission Statement all of those currencies shall be converted into Rupiah Currency based on the Bank of Indonesia's selling rate of exchange prevailing at the end of the quarter (s) to which the accounts are referred.
- 7.2.3. In the event of any Profit Commission Statement showing a debit to REINSURER on the results of any one treaty year by reason of the OUTGO exceeding the INCOME, the total of such debit shall be set against the result of the ensuing treaty year or years as the case may be and no profit commission shall become payable to the REINSURED in respect of such ensuing treaty year or years unless and until the previous debit has been extinguished and a net profit again restored. However, no debit shall be carried forward for a longer period than that stated in the Schedule.

ARTICLE 8

(Losses And Recoveries)

All losses on cession under this agreement shall be incorporated in the quarterly accounts rendered by the REINSURED.

The REINSURED upon knowledge of any loss or losses which may give rise to a claim under this agreement attaining to or exceeding the amount as specified in the Schedule, shall advise the REINSURER thereof immediately but not later than 30 days. The REINSURED must submit the Loss Notification to the REINSURER not later than 6 months from the date of loss, otherwise the REINSURER will have no liability of such losses.

The REINSURED shall cooperate, which include the appointment of Loss Adjuster, Solicitor, Surveyor and Lawyer, with the LEADING REINSURER as stated in the Schedule in the adjustment and settlement of loss or losses which may give rise to a claim under this agreement attaining to or exceeding the amount as specified in the Schedule and shall furnish the REINSURER with all available information and complete supporting documents in respect of such loss or losses. In the event that the REINSURED failed to comply with the respective requirements, it may affect to the REINSURER's Liability of the losses.

Nevertheless, the REINSURER may consider any request for cash loss payment for a claim by any one loss under this agreement equal to or exceeds the amount stated for cash loss payment in the Schedule and the REINSURER shall remit its proportion of such loss as soon as possible after having confirmed its agreement thereto.

The REINSURER shall however be entitled to set off against such amount any liquid balance in its favour under this agreement and/or any other Reinsurance Agreement between the parties hereto.

The REINSURED shall, within one month after the close of each calendar year, furnish the REINSURER with a statement of outstanding losses under this agreement as at 31st Desember of each year such statement to show the amount for which the REINSURER may be liable in respect of each individual claim.

The REINSURER shall be liable for its proportion of all expenses (excluding employees' salaries and office expenses of the REINSURED) incurred by the REINSURED in connection with the settlement of loss or losses, and shall participate in any sums which may be received by the REINSURED whether by salvage or otherwise.

It is hereby understood and agreed, that prior consent of the LEADING REINSURER shall first be obtained in respect of any ex-gratia and/or compromised settlements of claims.

ARTICLE 9 **(Errors And Omissions)**

Any clerical error and omission shall not in any circumstances affect the rights or liabilities of either party hereunder, provided that such error and omission shall be corrected immediately upon discovery.

ARTICLE 10 **(Rights To Inspection)**

The REINSURER may, at any time during normal office hours and at any place where they shall be kept, inspect the REINSURED'S records, books, accounts, and any documents relating to business covered under this treaty, but where arbitration or legal proceedings are pending between the parties hereto this right of inspection shall only be exercised through a representative who is not an employee of the REINSURER. The REINSURER shall advise the REINSURED of his intention to exercise his rights of inspection at least forty-eight hours in advance.

The REINSURER'S right of inspection shall exist as long as one of the parties hereto has a claim against the other party originating from business arising under this treaty, even after its termination or invalidation. Upon request the REINSURED shall supply the REINSURER, at the REINSURER'S

expense, with copies of the whole or any part of the REINSURED'S records, books, accounts and any documents relating to business ceded under this treaty.

ARTICLE 11
(Commencement And Termination)

- 11.1. This agreement is concluded for an unlimited period and shall take effect in respect of policies issued or renewed on risks covered on or after the date as stated in the Schedule and shall be terminated on the basis set out in the Schedule. In the event of either party giving notice of termination in accordance with the provisions set out in the Schedule then such notice shall be automatically deemed to have been given by both parties. During the period of notice the REINSURER shall continue to participate in all cession covered by the terms of this agreement.
- 11.2. The REINSURER shall (unless specifically agreed otherwise) remain liable for its share of all cessions hereunder in force on the effective date of termination until their next annual renewal date or natural expiry.
- 11.3. Either party shall have the right to terminate this agreement forthwith by giving the other party written notice by the quickest means available which shall be deemed to be served upon despatch or where communications between the parties are interrupted upon attempted despatch where :
- a) the performance of the whole or any part of this agreement be prohibited or rendered impossible de jure or de facto particular and without prejudice to the generality of the preceding words in consequence of any law or regulation which is or shall be in force in any country or territory or if any law or regulation shall prevent directly or indirectly the remittance of any or all or any part of the balance of payments due to or from either party.
 - b) the other party has become insolvent or unable to pay its debts or has lost the whole or any part of its paid up capital or has had its authority to transact any class of insurance withdrawn suspended or made conditional.
 - c) there is any material change in the management or control of the other party.
 - d) the country or territory in which the other party resides or has its head office or is incorporated shall be involved in armed hostilities with any other country whether war be declared or not or is partly or wholly occupied by another power or be in a state of civil war.
 - e) the other party shall have failed to comply with any of the terms and conditions of this agreement.

Notwithstanding provided herein to the contrary all cessions in force and losses
Version Date: 20 January 2023

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A business of Marsh McLennan

outstanding on the date of such termination shall be withdrawn in the manner set forth in Article 12 of this Agreement.

ARTICLE 12
(Special Termination)

Section1 (Unilateral Termination)

- (a) It is a condition upon each subscribing Reinsurer who participates in this Contract that such individual subscribing Reinsurer shall at all times during the period of this Contract maintain an insurer financial strength (IFS) rating from Standard & Poor's Rating Group of 55 Water Street, New York, New York 10041, USA (S&P) equal to or greater than A-.
- (b) In the event of an explicit downgrading of any individual subscribing Reinsurer by S&P to an IFS rating inferior to A- then, at the sole option of the Reinsured, the Reinsured may elect to terminate the participation of that subscribing Reinsurer by giving notice to that Reinsurer.
- (c) Any individual subscribing Reinsurer who does not have an IFS rating from S&P but maintains during the period of this Contract a rating from A.M. Best Company of A.M. Best Road, Oldwick, New Jersey 08858-0700 USA (Best) shall also be considered as falling within the terms of this Article. Any explicit downgrading of such an individual subscribing Reinsurer by Best to a rating less than A- shall give the Reinsured the same right of termination as set out in (b) above.
- (d) In the event that a rating should be given to an individual subscribing Reinsurer by both S&P and Best then the rating of S&P shall prevail.
- (e) For the avoidance of doubt the status of Credit Watch as defined by S&P or a rating modifier of 'u' (Under Review) applied to a rated Company as defined by Best shall not, of itself, be construed as a downgrading for the purposes of this Contract.
- (f) With regard to any Lloyd's Underwriters participating hereunder, the rating applicable to each individual Lloyd's Underwriter shall be the S&P IFS rating applicable to the Lloyd's Insurance Market as a whole at the time the leading Lloyd's Underwriter contracted in writing to participate in this Contract.
- (g) If, for a Reinsurer with no rating by S&P and Best, a Reinsurer experiences a loss of 20% or more of its policyholders' surplus or shareholder funds during any twelve month period then, at the sole option of the Reinsured, the Reinsured may elect to cancel the participation of that individual subscribing Reinsurer from the date when the 20% reduction was reached.
- (h) The Reinsured may also elect to cancel the participation of any individual subscribing Reinsurer that ceases underwriting. The effective date of such cancellation shall be determined at the sole discretion of the Reinsured provided that the date so determined shall not be earlier than the date upon which the relevant Reinsurer ceased underwriting..
- (i) The Reinsured shall have the option to cancel any Reinsurer's participation in this Contract, at any time, by written notice to the Reinsurer concerned if any individual subscribing Reinsurer ceases underwriting the class of business to which the Contract relates.

- (j) For the avoidance of doubt, any cancellation in accordance with Section 1 (Termination) of this clause shall be at the sole option of the Reinsured, and in the absence of such cancellation by the Reinsured, Reinsurers shall remain liable under this Contract.

Section2 (Mutual Termination)

Furthermore, either party shall have the right to terminate this Contract by giving the other party notice:-

- (a) if the performance of the whole or any part of this Contract be prohibited or rendered impossible de jure or de facto in particular and without prejudice to the generality of the preceding words in consequence of any law or regulation which is or shall be in force in any country or territory or if any law or regulation shall prevent directly or indirectly the remittance of any payments due to or from either party,
- (b) if the other party has become insolvent or unable to pay its debts or has lost 20% or more of its policyholder's surplus or of its paid up capital or has had any authority to transact any class of insurance the subject matter of this Contract or reinsurance withdrawn, suspended or made conditional,
- (c) if there is any material change in the management or control of the other party,
- (d) if there is a severance or obstruction of free and unfettered communication and/or normal commercial and/or financial intercourse between the parties due to the country in which the other party has its domicile or head office becoming involved in armed hostilities with another country, whether war be declared or not, or being partly or completely occupied by another power, or affected by civil war.

Section 3 (Notice and Effect)

- (a) With regard to Section 1 and Section 2 (b), this Contract may be terminated by giving of 30 days notification to the other party. The other termination options of Section 2 shall have immediate effect.
- (b) After the date of termination, under either Sections 1 or 2 above, the liability of the Reinsurer hereunder shall cease outright other than in respect of losses which have occurred or commenced prior thereto. Liability for loss occurrences that are in progress at the date of termination is dealt with in accordance with the Extended Expiration Clause.
- (c) All notices of termination served in accordance with any of the provisions of Sections 1 or 2 above shall be by telex, telefax or any other means of instantaneous communication that provides a permanent record of such communication and shall be deemed to be served upon dispatch or where communications between the parties are interrupted upon attempted dispatch.
- (d) All notices of termination served in accordance with any of the provisions of Sections 1 or 2 above shall be addressed to the party concerned at its head office or at any other address previously designated by that party.
- (e) In the event of termination in accordance with the provisions of Sections 1 or 2 above the exact premium payable hereunder shall be calculated upon the Premium Income of the Reinsured up to the

date of termination or pro rata temporis of the Minimum and Deposit Premium, whichever is the greater.

ARTICLE 13
(Portfolio Withdrawal)

In the event of this agreement being terminated for any reason whatsoever the liability of the REINSURER in respect of cessions current as at the termination date shall continue in full force until the normal expiry or renewal dates of such cessions.

Alternatively, the REINSURED shall have the option of withdrawing the portfolio of cessions in force at the date of termination by debiting the REINSURER with its proportion of unearned premiums calculated on the basis as set out in the Schedule of the premiums credited to the REINSURER during the preceding twelve months.

Such amount shall be considered as being equal to the unexpired portion of the premiums, and the REINSURER shall be relieved forthwith of any liability relating to losses occurring after the date of termination of this agreement.

The REINSURED shall also have the option to debit the REINSURER with its proportion at the percentage of the losses outstanding as stated in the Schedule as at the date of termination as estimated by the REINSURED, thereby relieving the REINSURER of all further liability hereunder. The REINSURED shall, however, effect further adjustment or adjustments at later dates should the amount of Portfolio Loss Withdrawn varies less or more than 10 (ten) percent of the actual payment of such loss.

ARTICLE 14
(Portfolio Assumption)

If required by the REINSURED, the REINSURER agrees for its proportion to assume the unexpired liability as at the inception date of this agreement of all previous cessions to the

treaty of which this agreement forms a part. As consideration the REINSURED will pay to the REINSURER its proportion of the unearned premiums calculated on the basis as stated in the Schedule of the premiums ceded during the preceding twelve months.

If required by the REINSURED, the REINSURER further agrees to assume its proportionate share of liability for all outstanding losses as at the inception date of this agreement including any losses which occurred prior to the inception date of this agreement but which for any cause whatsoever was not advised to the REINSURED until after the inception date of this agreement in consideration of which the REINSURED shall credit the REINSURER with its proportionate share at the percentage as stated in the Schedule of the estimated outstanding losses as at the inception date of this agreement. The REINSURED shall, however, effect further adjustment or adjustments at later dates should the

amount of Portfolio Loss Assumption varies less or more than 10 (ten) percent of the actual payment of such loss.

ARTICLE 15
(Arbitration)

All matters in difference between the parties in relation to the contract to which this Agreement is attached, including formation and validity, and whether arising during or after the period of that contract, shall be referred to an arbitration tribunal in the manner hereinafter set out. Unless the parties agree upon a single arbitrator within thirty days of one receiving a written request from the other for arbitration, the claimant (the party requesting arbitration) shall appoint his arbitrator and give written notice thereof to the respondent.

Within thirty days of receiving such notice the respondent shall appoint his arbitrator and give written notice thereof to the claimant, failing which the claimant may apply to the appointer hereinafter named to nominate an arbitrator on behalf of the respondent.

Before they enter upon a reference the two arbitrators shall appoint a third arbitrator. Should they fail to appoint such a third arbitrator within thirty days of appointment of the respondent's arbitrator then either of them or either of the parties may apply to the appointer for the appointment of the third arbitrator. The three arbitrators shall decide by majority.

If no majority can be reached the verdict of the third arbitrator shall prevail. He shall also act as Chairman of the Tribunal.

Unless the parties otherwise agree the arbitration tribunal shall consist of persons with not less than ten years' experience of insurance or reinsurance and currently employed or engaged in a senior position in the insurance or reinsurance industry.

The arbitration tribunal shall have power to fix all procedural rules for the holding of the arbitration including discretionary power to make orders as to any matters which it may consider proper in the circumstances of the case with regard to pledging, discovery, inspection of the documents, examination of witnesses and any other matter whatsoever relating to the conduct of the arbitration and may receive and act upon such evidence whether oral or written strictly admissible or not as it shall in its discretion think fit.

The appointer shall be the Chairman for the time being of the General Insurance Association of Indonesia (Asosiasi Asuransi Umum Indonesia), or if he is unavailable, or it is inappropriate for him to act for any reason, such person as may be nominated by the Executive Committee of the General Insurance Association of Indonesia (Asosiasi Asuransi Umum Indonesia).

All costs of the arbitration shall be at the discretion of the arbitration tribunal who may direct to and by whom and in what manner they shall be paid.

The seat of the arbitration shall be in Jakarta and the arbitration tribunal shall apply the laws of Indonesia as the proper law of this Agreement and of the contract to which this Agreement is attached.

The award of the arbitration tribunal shall be in writing and binding upon the parties who covenant to carry out the same.

If either of the parties should fail to carry out any award the other may apply for its enforcement to a court of competent jurisdiction in any territory in which the party in default is domiciled or has assets or carries on business

ARTICLE 16
(ALTERATIONS)

Any mutually agreed modifications of the terms and conditions of this agreement, whether by addendum, correspondence or otherwise, shall be deemed to be binding upon the parties hereto and form an integral part of this agreement.

ARTICLE 17
(The Schedule And Signing)

The Schedule attaching to and forming a part of this agreement is made in duplicate and signed by both parties as approval of this agreement.

A new Schedule(s) shall be issued on every anniversary date. Such Schedule shall replace the previous year's Schedule which shall be deemed cancelled. Change of REINSURER's share and any other changes agreed shall be set forth in such Schedule(s).

In the event no new Schedule is issued because of termination in accordance with Article 11, this agreement shall be deemed cancelled.

ARTICLE 18
(Intermediary Clause)

Guy Carpenter, a division of PT. Marsh Reinsurance Brokers Indonesia, is hereby recognized as the Intermediary negotiating this Contract for all business hereunder. All communications (including notices, statements, premiums, return premiums, commissions, taxes, losses, loss expense, salvages, and loss settlements) relating thereto shall be transmitted to the Reinsured or the Reinsurer through: - (a) Guy Carpenter, a division of PT. Marsh Reinsurance Brokers Indonesia, World Trade Center 3, 16th Floor, Jl. Jend. Sudirman Kav. 29-31, Jakarta 12920, Indonesia; and (b) Guy Carpenter, 138 Market Street #07-05, CapitaGreen, Singapore 048946.

ARTICLE 19
(Mode Of Execution Clause)

This Contract and any amendments or changes thereto may be executed by:

- (a) an original written ink signature of paper documents;
- (b) a scanned copy in Portable Document Format (PDF) showing the original written ink signature of paper documents;
- (c) digital signature technology which functionality is under the sole control of the person authorized to execute the digital signature concerned. Provided that the digital signature applied is capable of authentication and is linked to the digitally signed document in such a manner that if the digitized image is altered, such digital signature is invalidated;

- (d) a unique authorization provided via a secure electronic trading platform.
- (e) a timed and dated authorization provided via an electronic message system.

Unless otherwise required by law or regulation, the use of any one or a combination of these methods of execution shall constitute a legally binding and valid signing of this Contract. The Contract or any amendments or changes thereto, may be executed in one or more counterparts, each of which, when duly executed, shall be deemed an original.

FISCAL AND REGULATORY

**TAXES PAYABLE
BY REINSURER(S)** : As stated under the heading "Taxes payable by Reinsurer(s) and Administered
by the Reinsured or their Agent"

**COUNTRY OF
ORIGIN** : Indonesia.

**OVERSEAS
BROKER** :

**LICENCE
INFORMATION** : It shall be the Reinsurers' sole responsibility to ensure that they are fully
licensed to transact business in the Territories and in the Classes of Business
set out in the Contractual Details. In the event that the Reinsurers become
aware of any licensing issues, the Reinsurers shall notify the Reinsured
immediately and shall take all reasonable actions to comply with the required
licensing terms.

**REGULATORY
CLIENT
CLASSIFICATION** : Reinsurance.

BROKER REMUNERATION AND DEDUCTIONS

FEE PAYABLE BY
REINSURED /
CLIENT : No.

TOTAL
BROKERAGE : 2.5% on Original Gross Rate

OTHER
DEDUCTIONS
FROM PREMIUM : None.

**REINSURER
SIGNING PAGE**

Attaching to and forming part of

PT. ASURANSI TRI PAKARTA, Jakarta, Indonesia

WHOLE ACCOUNT QUOTA SHARE AND SURPLUS TREATY REINSURANCE AGREEMENT

The Reinsurer named below hereby agrees to the terms and conditions of this Contract in respect of the participation as stated below:

Reinsurer Name : PT. Reasuransi Indonesia Utama (Persero)

Written Participation : 35% of QS of 100% Treaty Limit
35% of 100% Treaty Limit

Signed Participation : 35% of QS of 100% Treaty Limit
35% of 100% Treaty Limit

Reference :

Signed in..... Jakarta this 25th day of January , 2023



REINSURED
SIGNING PAGE

Attaching to and forming part of

PT. ASURANSI TRI PAKARTA, Jakarta, Indonesia

WHOLE ACCOUNT QUOTA SHARE AND SURPLUS TREATY REINSURANCE AGREEMENT

The Reinsured hereby agrees to the terms and conditions of this Contract:

Signed for and on behalf of the Reinsured:

PT. ASURANSI TRI PAKARTA, Jakarta, Indonesia

In Jakarta on this 28th day of February, 20 23 *abs*

